



LUSHIKISHINI

Cattle Feeders Cooperative

CONSTITUTION

Established under the Cooperative Societies Act, 2003

Kingdom of Eswatini

Founding Members: 10

Registered Office: Lushikishini, kaMavuso, Phondo Inkhundla

Date of Adoption: January 2026

Traditional Authority: Chief Somtsewu

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Preamble

We, the undersigned founding members, residents of Lushikishini, kaMavuso area, under the jurisdiction of Phondo Inkhundla and traditional authority of Chief Somtsewu, hereby voluntarily associate ourselves to form a cooperative society for our mutual benefit and economic advancement.

We commit to operate in accordance with the internationally recognized cooperative principles of voluntary membership, democratic control, member economic participation, autonomy, education, cooperation among cooperatives, and concern for community.

01 NAME, LOCATION & REGISTERED OFFICE

1.1 Name

The name of the cooperative shall be "**Lushikishini Cattle Feedlot Cooperative**" (hereinafter referred to as "the Cooperative").

1.2 Registered Office

The registered office of the Cooperative shall be located at:

Physical Address:

Lushikishini Area

kaMavuso

Phondo Inkhundla

Under Chief Somtsewu

Kingdom of Eswatini

1.3 Objectives

The primary objectives of the Cooperative shall be:

1. To operate a cattle feedlot enterprise for the economic benefit of members;
2. To purchase, fatten, and sell cattle for profit;
3. To provide employment and income generation for members;
4. To promote sustainable agricultural practices in cattle farming;
5. To contribute to food security in the Kingdom of Eswatini;
6. To foster cooperation and unity among community members;
7. To provide training and skills development in livestock management;

8. To serve as a model for community-based agricultural enterprises.

02 MEMBERSHIP

2.1 Founding Members

The Cooperative is established with **ten (10) founding members** as listed in Schedule A of this Constitution.

2.2 Eligibility for Membership

Membership shall be open to any person who:

1. Is a citizen of the Kingdom of Eswatini or permanent resident;
2. Is 18 years of age or older;
3. Resides within or has strong ties to the Lushikishini/kaMavuso community;
4. Agrees to abide by this Constitution and decisions of the Cooperative;
5. Is willing to participate actively in the activities of the Cooperative;
6. Is approved by a two-thirds majority vote of existing members.

2.3 Application Process

1. Applications for membership shall be submitted in writing to the Executive Committee;
2. The Executive Committee shall review applications within 30 days;
3. Recommended applications shall be presented to the next General Meeting;
4. Membership becomes effective upon payment of the membership fee.

2.4 Membership Fee

Type	Amount	Notes
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Joining Fee	E500	One-time, non-refundable
Annual Subscription	E200	Due January each year

2.5 Termination of Membership

Membership may be terminated by:

1. Voluntary resignation with 30 days written notice;
2. Death of the member;
3. Expulsion by two-thirds majority vote for serious misconduct;
4. Non-payment of fees for more than 6 months after due date.

03 RIGHTS & DUTIES OF MEMBERS

3.1 Rights of Members

Every member in good standing shall have the right to:

1. Attend and participate in all General Meetings;
2. Vote on all matters brought before the membership (one member, one vote);
3. Stand for election to the Executive Committee;
4. Receive a share of the annual surplus according to Article 7;
5. Access to financial records and reports of the Cooperative;
6. Participate in training and capacity building activities;
7. Submit proposals for consideration by the Cooperative.

3.2 Duties of Members

Every member shall be obligated to:

1. Abide by this Constitution and all lawful decisions of the Cooperative;
2. Pay all fees, levies, and contributions as determined by the Cooperative;
3. Participate actively in meetings and activities of the Cooperative;
4. Contribute labor as required according to the work schedule;
5. Protect the property and interests of the Cooperative;
6. Act in good faith and in the best interests of the Cooperative;
7. Not engage in activities that compete with or harm the Cooperative.

 **Important:** Members who fail to fulfill their duties may face disciplinary action as outlined in Article 8.

04 GOVERNANCE STRUCTURE

4.1 General Meeting

The General Meeting is the **supreme governing body** of the Cooperative, comprising all members in good standing.

4.2 Executive Committee

The Executive Committee shall consist of:

Position	Current Holder	Key Responsibilities
Chairperson	Sibusiso Mavuso	Overall leadership, chair meetings, external representation
Vice-Chairperson	Seluleko Ndwandwe	Deputize for Chairperson, operations oversight
Secretary	Zakhele Dlamini	Records, correspondence, meeting minutes
Treasurer	Sibusiso Mavuso	Financial management, accounting, reporting
Technical Advisor	Sanele Dlamini	Agricultural expertise, feed management, animal health

4.3 Term of Office

1. Executive Committee members serve for **two (2) years**;
2. Members may be re-elected for a maximum of **two consecutive terms**;
3. Elections shall be held at the Annual General Meeting;

4. Vacancies may be filled at any Special General Meeting.

05 MEETINGS

5.1 Annual General Meeting (AGM)

1. Shall be held once per year, not later than **March 31**;
2. Members shall receive at least **14 days written notice**;
3. Agenda shall include: Annual report, audited accounts, elections, annual plan.

5.2 Ordinary General Meetings

1. Shall be held at least **once per month**;
2. Notice of at least **7 days** shall be given;
3. Shall review operations, finances, and make operational decisions.

5.3 Special General Meetings

1. May be called by the Executive Committee at any time;
2. Must be called within 14 days if requested by at least **one-third of members**;
3. Only matters specified in the notice may be discussed.

5.4 Quorum and Voting

Meeting Type	Quorum Required	Voting Threshold
General Meetings	50% + 1 members	Simple majority (50% + 1)
Constitutional Amendments	Two-thirds members	Two-thirds majority
Expulsion of Member	Two-thirds members	Two-thirds majority

Dissolution

All members

Three-quarters majority

06 FINANCIAL PROVISIONS

6.1 Financial Year

The financial year shall run from **1 April to 31 March**.

6.2 Bank Account

1. The Cooperative shall maintain a bank account at a registered financial institution;
2. All transactions require **two signatories**: Chairperson AND Treasurer;
3. Monthly bank reconciliation shall be performed and reported to members.

6.3 Records and Audit

1. Proper books of account shall be maintained;
2. Annual accounts shall be prepared and presented at AGM;
3. External audit may be conducted if required by law or voted by members.

07 DISTRIBUTION OF SURPLUS

7.1 Surplus Allocation

The annual surplus (net profit) shall be distributed as follows:

Allocation	Percentage	Purpose
Emergency Reserve	10%	Unforeseen expenses, disease outbreaks, emergencies
Development Fund	10%	Expansion, infrastructure, equipment replacement
Member Distribution	80%	Equal distribution to all members in good standing

7.2 Equal Distribution Principle

With 10 members, each member receives **10% of the distributable surplus** (8% of total surplus).

Example: If monthly profit is E50,100:

- Emergency Reserve: E5,010
- Development Fund: E5,010
- Member Distribution: E40,080 (E4,008 per member)

7.3 Distribution Schedule

1. Monthly distributions may be made from operating profits;
2. Final annual distribution after year-end accounts are prepared;

3. New members receive distribution from their second month of membership.

7.4 Reserve Fund Management

1. Reserve funds shall be kept in a separate savings account;
2. Emergency Reserve may only be used with Executive Committee approval;
3. Development Fund use requires General Meeting approval;
4. Reserve fund balance shall be reported at each meeting.

08 DISCIPLINE & DISPUTE RESOLUTION

8.1 Disciplinary Offenses

1. Theft or misappropriation of Cooperative funds or property;
2. Willful damage to Cooperative property;
3. Failure to perform assigned duties without reasonable cause;
4. Bringing the Cooperative into disrepute;
5. Persistent failure to attend meetings without apology;
6. Engaging in competing business activities.

8.2 Disciplinary Procedure

1. **Written Warning:** First offense (minor matters)
2. **Final Warning:** Second offense or first serious offense
3. **Suspension:** Up to 3 months, with loss of distribution
4. **Expulsion:** Serious misconduct, requires 2/3 majority vote

8.3 Dispute Resolution

1. **Step 1:** Direct discussion between parties involved
2. **Step 2:** Mediation by Executive Committee
3. **Step 3:** Hearing at General Meeting
4. **Step 4:** External mediation (if unresolved)

09 AMENDMENT OF CONSTITUTION

1. This Constitution may only be amended at a General Meeting;
2. Proposed amendments must be circulated **21 days** before the meeting;
3. Amendments require **two-thirds majority** of members present;
4. Amendments take effect upon registration with relevant authorities.

10 DISSOLUTION

1. The Cooperative may only be dissolved by a **three-quarters majority** of all members;
2. Upon dissolution, assets shall be liquidated;
3. Proceeds shall first settle all liabilities;
4. Remaining assets distributed equally among members;
5. The Registrar of Cooperatives shall be notified.

SCHEDULE A: FOUNDING MEMBERS

The following ten (10) persons are recognized as the Founding Members of the Lushikishini Cattle Feedlot Cooperative:

1. Sibusiso Mavuso

Chairperson & Treasurer

ID Number: _____

Signature: _____

2. Sanele Dlamini

Technical Advisor

ID Number: _____

Signature: _____

3. Zakhele Dlamini

Secretary

ID Number: _____

Signature: _____

4. Seluleko Ndwandwe

Vice-Chairperson

ID Number: _____

Signature: _____

5. Sibusiso Dlamini

Member

ID Number: _____

Signature: _____

6. Temancele Mavuso

Member

ID Number: _____

Signature: _____

7. Gugu Vilakati

Member

ID Number: _____

Signature: _____

8. Vuyo Motsa

Member

ID Number: _____

Signature: _____

9. Neliso Mavuso

10. Sphumelele Shabangu

Member _____ ID Number: _____ Signature: _____	Member _____ ID Number: _____ Signature: _____
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SCHEDULE B: ADOPTION & CERTIFICATION

CERTIFICATE OF ADOPTION

We, the undersigned founding members of the Lushikishini Cattle Feedlot Cooperative, do hereby certify that this Constitution was duly adopted at a meeting of the founding members held at Lushikishini, kaMavuso, on this day.

Executive Committee Signatures

Sibusiso Mavuso

Chairperson

Zakhele Dlamini

Secretary

Date of Adoption: _____ day of _____ 2026

Traditional Authority Endorsement

Witnessed and Endorsed by the Office of Chief Somtsewu:

Chief's Signature/Stamp:

Witness Name:

Date: _____

LUSHIKISHINI CATTLE FEEDLOT COOPERATIVE

Constitution Adopted January 2026

Phondo Inkhundla • Chief Somtsewu • Kingdom of Eswatini